

Mohd. Zaheer Uddin Babar v. State of U.P.

Allahabad High Court · Division Bench · 12 January 2021 · WRIT-C No. 23633 of 2020 · WRIT - C No. - 23633 of 2020 · **Writ disposed; Clause 6.14 representation to be considered in law.**

HEADNOTE

Consumers seeking twelve equal instalments and waiver of interest on lockdown-period electricity arrears were relegated to a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court disposed of the writ without granting instalments, waiving interest, or restraining recovery, directing that any such representation be considered strictly in accordance with Clause 6.14.

FACTUAL SUMMARY

Twenty-two consumers, led by Mohd. Zaheer Uddin Babar, challenged bills issued after the COVID-19 lockdown as excessive. They sought a mandamus to deposit lockdown-period arrears in twelve equal instalments, waiver of interest, and a restraint on recovery. The licensee's counsel submitted that Clause 6.14 of the U.P. Electricity Supply Code, 2005 provided an alternative remedy by representation, and that the writ did not disclose any quantified dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding dues

HOLDING

A writ seeking mandamus to accept outstanding electricity dues in a court-fixed instalment schedule, waive interest, and restrain recovery is not decided on the merits where Clause 6.14 of the U.P. Electricity Supply Code, 2005 affords a representation to the licensee; if the consumers move such a representation, it shall be considered strictly in accordance with that clause. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated Clause 6.14 as the proper channel for a request to pay outstanding electricity dues in instalments, and would not itself mandamus a twelve-instalment schedule. ¶ 1

instalment-facility-clause-6.14-for-financial-distress Petitioners pleaded lockdown financial loss and sought interest exemption with easy instalments; that distress plea was left to Clause 6.14 consideration rather than granted in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS WERE EXCESSIVE OR LIABLE TO BE RECAST

¶ 1

NOT DECIDED — WHETHER INTEREST ON LOCKDOWN-PERIOD ARREARS SHOULD BE WAIVED

¶ 1

NOT DECIDED — WHETHER TWELVE EQUAL INSTALMENTS SHOULD BE GRANTED ON THE MERITS

¶ 1

